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|     |                                                            | <p><u><b>MOTION TO STRIKE FOURTH AMENDED COMPLAINT</b></u></p> <p>Defendants’ motion to strike is therefore moot.</p> <p>Defendants shall give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 11. | 2026-1578614<br>State Bar of<br>California vs.<br>Minnella | <p><b>***MODIFIED TENTATIVE AFTER SUBMISSION OF RESPONDENT DECLARATIONS</b></p> <p>The matter was initially set on 8/26/26. At the hearing, the Court inquired of Respondent’s counsel why no declarations had been submitted with the opposition. Respondent’s counsel asked for additional time to file declarations. The Court granted the request and continued the matter one week, to 9/2/26. The Court has received, read, and considered the newly submitted declarations (ROAs 70, 72, 73, 74, 75, 76, 77, 78, 79, 80, 81, and 82).</p> <p>At the outset, the Court notes that it received via United States mail, addressed to the Court by name, an unsolicited ex parte communication essentially attesting to Respondent John Minnella’s good character. The Court directed the clerk not to file the unauthorized communication, and the Court did not consider it in ruling on the petition.</p> <p>The State Bar of California’s Petition for Assumption of Jurisdiction over the unauthorized law practice of Respondent John Minnella is granted.</p> <p>Business and Professions Code section 6125 prohibits a person from practicing law in California unless the person is an active licensee of the State Bar. Giving legal advice and preparing legal instruments, whether or not rendered in the course of litigation, constitutes the practice of law. (<i>State Bar of California v. Superior Court</i> (1929) 207 Cal. 323, 335.) A single such act is sufficient. (<i>People v. Ring</i> (1937) 26 Cal.App.2d Supp. 768, 770–771.)</p> <p>Business and Professions Code section 6126, subdivision (a), provides in relevant part: “Any person advertising or holding himself or herself out as practicing or entitled to practice law or otherwise practicing law who is not an active licensee of the State Bar, or otherwise authorized pursuant to statute or court rule to practice law in this state at the time of doing so, is guilty of a misdemeanor....”</p> <p>An application under Business and Professions Code section 6126.3 must initially demonstrate probable cause to believe that the conduct described in section 6126, subdivision (a), has occurred and that the interests of a client or interested person or entity will be</p> |

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|  | <p>prejudiced if the proceeding is not maintained. (Bus. &amp; Prof. Code, § 6126.3, subd. (c).)</p> <p>At the final hearing, however, the Court must find that the conduct described in section 6126, subdivision (a), has occurred and that the interests of a client or interested person or entity will be prejudiced if the proceeding is not maintained. If those findings are made, the Court may assume jurisdiction over the person's practice. (Bus. &amp; Prof. Code, § 6126.3, subd. (e).) The State Bar bears the burden of proving the facts necessary for final relief by a preponderance of the evidence. (Evid. Code, § 115.)</p> <p>The State Bar has met that burden.</p> <p>Respondent is not, and has never been, a licensee of the California State Bar. He is not registered or bonded as an immigration consultant with the California Secretary of State and does not work under the direction or supervision of a licensed California attorney. (Cruz Decl., ¶¶ 4–5, 18, Exs. 1–2.)</p> <p>The evidence establishes that Respondent performed work for clients that included preparing and filing an I-130 family petition, preparing an asylum request, preparing DACA applications, preparing and filing responses to Requests for Evidence, and drafting a declaration intended to support an asylum application. (Cruz Decl., ¶¶ 7, 10–12, Exs. 4, 6–8.)</p> <p>Respondent's retainer agreement provided that a client's matter would be handled as determined by Respondent's "professional judgment" and that he would exercise that judgment according to his professional experience and knowledge, tactics and strategies, legality, ethics, the client's best interests, and other considerations within Respondent's sole discretion. (Cruz Decl., ¶ 8, Ex. 4.)</p> <p>Respondent also admitted to Investigator Cruz that he evaluates his clients' facts, provides clients with an analysis of their situations, and selects the forms he believes they require. Respondent characterized the advice he provides as based on "common knowledge." (Cruz Decl., ¶ 19.) The characterization does not alter the nature of the conduct. Evaluating a client's circumstances, selecting an immigration remedy or form, advising the client concerning that selection, and preparing documents requiring the exercise of legal judgment are not merely clerical services.</p> <p>The evidence also shows that Respondent conducted his business at premises identified as the "Law Offices of Minnella, English &amp; Wiksell." (Cruz Decl., ¶ 17, Ex. 13.) Respondent maintained a website under the name Minnellalaw.com offering services in the</p> |
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|  | <p>areas of immigration, citizenship, visas, asylum and refugee matters, and deportation defense, while representing that he had provided such services for more than 40 years. (Cruz Decl., ¶ 22, Ex. 15.)</p> <p>Respondent’s Facebook page under the name J.L. Minnella and Associates/Minnella Romano and Associates described the business as an “International Law Firm and Immigration Consultancy.” The page stated that Respondent was licensed to practice law in Nicaragua and certain reciprocal countries in Central and Latin America but was not licensed in any United States jurisdiction. It further stated that, in the United States, Respondent handled immigration, citizenship, nationality, visa, and consular matters as an immigration consultancy. (Cruz Decl., ¶ 23, Ex. 16.)</p> <p>Respondent’s disclosure that he was not licensed in the United States does not defeat the petition. Section 6126, subdivision (a), applies not only to a person who falsely holds himself out as entitled to practice law, but also to a person who “otherwise practic[es] law” without authorization. The evidence establishes that Respondent did the latter.</p> <p>Following the initial hearing, the Court continued the matter for one week to permit Respondent to submit the evidentiary declarations that had not accompanied his opposition. The Court has considered Respondent’s supplemental declaration (ROA 72) and the declarations filed at ROA 70 and ROA 73-82. They do not alter the Court’s conclusion.</p> <p>Respondent now denies that he independently evaluated legal eligibility, selected immigration remedies, or provided individualized legal advice. He characterizes his work as typing information supplied by customers, assembling documents selected by them, and locating the agency form corresponding to a benefit the customer had already chosen. He also disputes Investigator Cruz’s description of their January 2026 conversation, stating that, if he used the word “analysis,” he meant checking information for completeness and internal consistency, and that, if he referred to selecting a form, he meant locating the form corresponding to a benefit already requested. (Minnella Decl., ¶¶ 11, 13–19, 33.) The Court has considered those denials but finds them less persuasive than Investigator Cruz’s account and Respondent’s own contemporaneous records.</p> <p>Those records describe substantially more than clerical transcription. Respondent’s fee agreement authorized him to exercise “professional judgment” based on his “professional experience and knowledge,” “tactics and strategies,” legality, ethics,</p> |
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and the client's best interests, all within Respondent's sole discretion. Respondent's June 2015 accounting charged for preparing an asylum request, DACA applications, and a response to a Request for Evidence. It further stated that the asylum request could not "presently" be filed because the client lacked a United States citizen or permanent-resident spouse, child, or parent (an assessment of legal eligibility, not a clerical determination). In April 2024, Respondent wrote that he had reviewed and revised the client's asylum declaration, charged four hours at \$250 per hour for that work, referred to the client's "established benefits under the immigration laws," and described helping the client improve his status as Respondent's "obligation." These contemporaneous descriptions are consistent with Investigator Cruz's account that Respondent analyzed clients' circumstances, advised them, and selected the forms he believed they required.

The third-party declarations likewise do not rebut the decisive evidence. Most state that Respondent disclosed that he was not licensed in the United States, was regarded as honest and helpful, prepared forms using information supplied by clients, and referred legal issues to licensed attorneys. Several declarants also state, in substantially identical and conclusory language, that Respondent did not advise them concerning legal positions or strategy. (ROA 70, 73–76, 78–82.) Those declarations may support Respondent's position that he did not falsely claim California licensure, *but the petition does not depend on such a misrepresentation*. Section 6126, subdivision (a), separately reaches a person who "otherwise practic[es] law" without authorization. Nor does evidence that Respondent performed permissible clerical work for some clients disprove the evidence that he performed legal work for Delgado Ramirez and others. A single unauthorized act is sufficient.

The declarations from attorneys Vital D'Carpio and Ryan English do not change the analysis. D'Carpio states that Respondent referred prospective clients to his office and that those persons understood Respondent was not a lawyer. English confirms that he and Respondent merely shared office space and explains that his earlier assumption that Respondent was a lawyer was not based on any express representation by Respondent. (ROA 76–77.) The Court accepts that evidence for purposes of this ruling. It reduces the significance of the shared-office signage, but it does not address, much less negate, the evidence of Respondent's own immigration work, admissions, fee agreement, accounting, and client communications.

Respondent's declaration also reinforces the need to maintain this proceeding. He identifies multiple potentially time-sensitive client matters and admits that, after execution of the interim order, he

continued customer contact and form-related activity. Among other things, he assisted with submission of an I-360, I-485, and I-765 package; handled materials for a response to a Request for Evidence due September 5, 2026, and accepted a \$500 payment on the client's account; provided another client an I-765 application and accepted a \$200 payment; and was asked to file another client's completed I-485 application. (Minnella Decl., ¶¶ 25–32.) Even accepting Respondent's characterization of those acts as administrative, they confirm an ongoing immigration practice involving active matters, deadlines, client files, and client funds. They therefore *strengthen*, rather than undermine, the finding that client notification, deadline protection, and orderly return or transfer of files are necessary.

Respondent's reliance on *Benninghoff v. Superior Court* (2006) 136 Cal.App.4th 61 is unpersuasive. *Benninghoff* concerns legal activity affirmatively authorized by federal law. Respondent identifies no statute, regulation, federal admission, agency accreditation, or other federal authorization permitting him to represent persons in immigration matters. His license to practice law in Nicaragua does not, by itself, authorize him to practice United States immigration law in California.

The Court therefore finds by a preponderance of the evidence that Respondent engaged in the unauthorized practice of law within the meaning of Business and Professions Code section 6126, subdivision (a).

The Court further finds that the interests of Respondent's clients will be prejudiced if this proceeding is not maintained. Respondent maintained immigration client files involving matters potentially subject to deadlines and other time-sensitive obligations. Those clients must be notified that Respondent is not authorized to practice law in California, advised that it may be in their best interests to obtain licensed counsel, and afforded an orderly means of recovering their files. An injunction alone would not accomplish the client-notification, deadline-protection, and file-return functions contemplated by section 6126.3, subdivision (e). The restriction against unlicensed practice also protects members of the public from being advised and represented by unqualified persons and protects the integrity of the legal process. (See *Russell v. Dopp* (1995) 36 Cal.App.4th 765, 773.)

Respondent requests the return of personal materials unrelated to the affected practice. That request is reasonable, although Petitioner represents that any personal documents, foreign-law documents, personal mail, and other materials unrelated to the unauthorized practice were taken inadvertently and will be returned. The Court's jurisdiction over Respondent's files, records,

and practice exists only for the limited purposes stated in section 6126.3. (Bus. & Prof. Code, § 6126.3, subd. (e).) Petitioner shall therefore use reasonable procedures to identify and promptly return materials that are plainly personal or otherwise unrelated to the affected practice. Either party may apply to the Court for further direction concerning any genuinely disputed category of property.

Respondent also objects that the interim order permits the deletion of electronic data. Petitioner represents that it did not confiscate any computers or storage devices from Respondent's business address and has no access to any cloud-based system belonging to Respondent. The issue therefore has no present practical application. Nevertheless, no electronic data shall be permanently erased or destroyed pursuant to the final order absent client authorization, written agreement of the parties, or further order of the Court.

Respondent's remaining requests for an itemized file-by-file inventory, supervised access to client files, a formal clawback procedure, and automatic in-camera review of disputed materials are not required by section 6126.3 and are not warranted on the present record. Section 6126.3, subdivision (f), requires any person examining the files to observe any applicable lawyer-client privilege and permits disclosure only to the extent reasonably necessary to accomplish the statute's purposes. That obligation remains in effect. Nothing in that provision, however, makes Respondent or his present counsel the holder of a client's privilege or establishes a right to continued access to client information used in the unauthorized practice of law.

Business and Professions Code section 6030 authorizes the State Bar to seek an injunction against a violation or threatened violation of Article 7 of the State Bar Act, commencing with section 6125, without an undertaking. Respondent's past conduct, his continuing insistence that the services he provided were permissible immigration consulting, and the nature and duration of his practice establish an adequate basis for prospective injunctive relief.

Accordingly, having made the findings required by Business and Professions Code section 6126.3, subdivision (e), the Court grants the petition and will issue permanent orders assuming jurisdiction over the unauthorized law practice of John Minnella, doing business as J.L. Minnella and Associates and Minnella Romano and Associates.

Respondent is permanently enjoined from advertising or holding himself out as entitled to practice law in California, or otherwise practicing law in California, unless he is an active licensee of the

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|  |  | <p>California State Bar or is otherwise authorized to perform the particular activity pursuant to statute or court rule.</p> <p>Petitioner shall submit a revised proposed final order consistent with this ruling and shall give notice.</p> |
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